

26NWCV01142 26NWCV01142

County: los-angeles

Division: Civil Law and Motion

Department: C

Hearing date: 2026-08-04

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SE%20%2CC%2C08%2F04%2F2026

Source SHA-256: 77756854f55c5cec0cb33070aee6cb67685eb48effa5c08d99d2be21e1e10570

Case Number: 26NWCV01142 Hearing Date: August 4, 2026 Dept: C

ORANGE COUNTY

CUSTOM VINYL GRAPHICS & SIGNS, INC. vs RH LAS INC.

CASE NO.: 26NWCV01142

HEARING: 8/4/2026 @

9:30 AM

#11

TENTATIVE ORDER

Plaintiff ORANGE COUNTY CUSTOM VINYL GRAPHICS & SIGNS, INC.'s application for a writ of attachment against Defendant RH LAS, INC. in the amount of \$112,046.00 is DENIED.

Moving Party to give notice.

Plaintiff ORANGE COUNTY CUSTOM VINYL GRAPHICS & SIGNS, INC. (Plaintiff) applies for a right to attach order and writ of attachment against Defendant RH LAS, INC. (Defendant).

Background

This is a commercial collection action. In December 2024, Defendant requested an estimate from Plaintiff to remove decal wraps from approximately 90 vehicles which Defendant acquired from another company so they could be rebranded for Defendant's Rooter Hero and Service Hero operations. Plaintiff

provided two estimates totaling \$30,547.50.

The removal work proved more difficult and time-consuming than initially anticipated due to the condition of the wraps.

Plaintiff ultimately invoiced Defendant for labor, services, and materials in the sum of \$103,526.00. Plaintiff contends that Defendant accepted the benefits of Plaintiff's work, but Defendant has failed to pay.

Legal Standard

"Except as otherwise provided by statute, an attachment may be issued only in an action on a claim or claims for money, each of which is based upon a contract, express or implied, where the total amount of the claim or claims is a fixed or readily ascertainable amount not less than five hundred dollars (\$500) exclusive of costs, interest, and attorney's fees." (Code Civ. Proc., § 483.010.)

"Upon the filing of the complaint or at any time thereafter, the plaintiff may apply pursuant to this article for a right to attach order and a writ of attachment by filing an application for the order and writ with the court in which the action is brought." (Code Civ. Proc., § 484.010.) The application shall be executed under oath and must include:

(a) statement

showing that the attachment is sought to secure the recovery on a claim upon which an attachment may be issued;

(b) a

statement of the amount to be secured by the attachment;

(c) a

statement that the attachment is not sought for a purpose other than the recovery on the claim upon which the attachment is based;

(d) a

statement that the applicant has no information or belief that the claim is discharged or that the prosecution of the action is stayed in a proceeding under the Bankruptcy Act (11 U.S.C. section 101 et seq.); and

(e) a

description of the property to be attached under the writ of attachment and a statement that the plaintiff is informed and believes that such property is subject to attachment.

(Code Civ. Proc., § 484.020.)

The Court shall consider the showing made by the parties, as well as the pleadings and other papers in the record. (Code Civ. Proc., § 484.090, subd. (a), (d).) The Court shall issue a right to attach order if it finds all of the following:

(1) The claim upon which the attachment is based is one upon which an attachment may be issued.

(2) The plaintiff has established the probable validity of the claim upon which the attachment is based.

(3) The attachment is not sought for a purpose other than the recovery on the claim upon which the attachment is based.

(4) The amount to be secured by the attachment is greater than zero.

(Code Civ. Proc., § 484.090, subd. (a)(1-4).)

At the times prescribed by Code of Civil Procedure section 1005, subd. (b), the defendant must be served with a copy of the summons and complaint, notice of application and hearing, and a copy of the application and supporting affidavits. (Code Civ. Proc., § 484.040.) "The Attachment Law statutes are subject to strict construction...." (Epstein v. Abrams (1997) 57 Cal.App.4th 1159, 1168.)

"In contested applications, the court must consider the relative merits of the positions of the respective parties and make a determination of the probable outcome of the litigation." (Hobbs v. Weiss (1999) 73 Cal.App.4th 76, 80 [ellipses and quotation marks omitted].)

Discussion

Plaintiff applies for a right to attach order and writ of attachment pursuant to Code of Civil Procedure section 483.010.

Basis for
the Attachment

Plaintiff argues that its claim is a proper claim for an attachment because it is on invoices and business records between the parties. Plaintiff claims \$103,526.00 as the balance due. (Norton Decl., Exhs. A-E.) Additionally, Plaintiff seeks costs for Court & eFiling Fees of \$435.00 and 85.00 for service of process. Plaintiff seeks \$520.00 in total costs.

Scott Norton is the manager of Plaintiff Orange County Custom Vinyl Graphics & Signs, Inc. Norton declares that in December 2024, Defendant requested that Plaintiff perform large-scale commercial wrap removal services for Defendant's fleet vehicles located in both Southern California and Northern California. (Norton Decl., ¶ 11.) Prior to commencement of work, Plaintiff explained to Defendant that the project involved substantial uncertainty because the age, condition, adhesive integrity, and removability of the wraps could not be determined until physical removal work commenced. (Id., ¶ 13.) During performance, Plaintiff repeatedly communicated with Defendant regarding the difficult condition of the wraps and the unexpectedly labor-intensive nature of the removal work. (Id., ¶ 28.) Defendant was aware during the course of performance that the project required extensive labor and additional time beyond the initial best-case estimates. (Id., ¶ 30.) Defendant repeatedly requested status updates concerning completion timelines, remaining vehicle counts, labor progress, scheduling, speed of completion, and project costs. (Id., ¶ 31.) Upon completion of substantial portions of the work, Plaintiff issued invoices reflecting the labor, overtime, travel, lodging, materials, adhesive removers, staffing, and related services actually provided. (Id., ¶ 33.)

In opposition, Defendant argues that the amount to be attached is not readily ascertainable. Defendant contends that Plaintiff's requested attachment amount is overstated, uncertain, unsupported, and disputed. Plaintiff has not demonstrated authorization for open-ended charges

and excessive labor/travel. Defendant claims offset for defective work. In support of these contentions, Defendant provides various declarations from Defendant's employees declaring that the project Plaintiff was hired to perform progressed slowly and/or was deficient. (Navarro Decl., ¶ 5; Hubbard Decl., ¶¶ 4-7; Donelan, ¶¶ 5-9; Lucio Decl. ¶¶ 4-23.) Fernando Lucio was Defendant's primary point of contact regarding scheduling, approvals, project logistics, operational coordination, and payment communications. Lucio declares that he was not provided with contemporaneous notice that Plaintiff intended to charge amounts substantially greater than the amount reflected in Plaintiff's original estimates. Because the invoices were first transmitted weeks or months after the invoice dates, he was not given the opportunity to evaluate the escalating charges as the work progressed or communicate any objection to those charges before Plaintiff continued performing additional work. (Lucio Decl., ¶ 18, Exh. A.) Lucio further declares that at "no time during my communications with Scott Norton did I receive a written request seeking approval to increase the cost of the decal removal project from approximately \$30,547.50 to more than \$103,000, nor did I provide written approval for such an increase." (Lucio Decl., ¶ 23.)

The Court is unable to conclude that the amount Plaintiff claims is fixed or readily ascertainable.

While it is undisputed that Plaintiff cautioned Defendant about increased labor costs, both before and during the project, it is unclear to the Court whether Defendant actually approved the cost increases before the additional work was performed. Moreover, even if Defendant did give its approval, there appears to be a genuine dispute regarding the invoiced amount, which is more than three times the amount of the estimate. On this record, Plaintiff has not sufficiently demonstrated the probable validity of its claims.

Accordingly, the application is DENIED.